

21STCV04685 21STCV04685

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-08-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C11%2C08%2F27%2F2026

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Case Number: 21STCV04685 Hearing Date: August 27, 2026 Dept: 11

MOTION FOR PRELIMINARY APPROVAL OF CLASS
ACTION SETTLEMENT

SASHA

MARTY NAVARRO vs LINCOLN TRAINING CENTER

Date of Hearing: August 27, 2026

c/f December 18, 2025

Department:

SSC-11

Case No.: 21STCV04685

TENTATIVE
RULING

The parties have failed to address certain
items from the Court's December 18, 2025

Checklist. Preliminary Approval is Continued for Counsel to address the following:

1. Defendant (not counsel) should provide a
declaration evidencing its financial condition and the need for an installment
plan to fund the settlement. Provide specific information, not generalized
conclusory statements. What evidence can Defendant provide that it has the
ability to make the payments agreed to?

2. Provide declarations disclosing the interest

or involvement (or lack thereof) in the governance or work of the cy pres recipient by: 1) Defense counsel ; 2) Plaintiffs; and 3) Defendant.

3. Revise ¶4.4 so that Class Counsel and the Class Representatives receive payment only after the Class, Aggrieved Employees, and LWDA have received full payment.

4. Paragraph 4.2 states that “[p]rior to the hearing on the Motion for Preliminary Approval, Defendant will deliver the Class Data to the Administrator in the form of a Microsoft Excel spreadsheet.” (Settlement Agreement, ¶4.2) Has the data been provided? If not, when does Defendant anticipate sending data? The Settlement Agreement should contain a deadline certain as to the delivery date.

5. If the Settlement Agreement is modified pursuant to this checklist, please submit both a red-lined copy showing changes made as well as a final version signed by all parties. Do not submit an addendum in lieu of a full amended settlement agreement including all operative settlement terms. Modify notice to match any alterations to the Settlement Agreement.

The additional briefing shall be due by _____, 2026. Note: if briefing is not filed by said date the hearing will be placed off calendar. Your hearing date is continued to the first available date of _____ at _____ in Department 11.

PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

As a “fiduciary” of the absent class members, the trial court’s duty is to have before it sufficient information to determine if the settlement is fair, adequate, and reasonable. (7-Eleven Owners for Fair Franchising v. The Southland Corp. (2000) 85 Cal.App.4th 1135, 1151, citing Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1801, 1802 (“Dunk”).)

California Rules of Court, rule 3.769 governs settlements of class actions.

Any party to a settlement agreement may submit a written notice for preliminary approval of the settlement.

The settlement agreement and proposed notice to class members must be filed with the motion, and the proposed order must be lodged with the motion.

California Rules of Court, rule 3.769(c).

In determining whether to approve a class settlement, the court's responsibility is to "prevent fraud, collusion or unfairness to the class" through settlement and dismissal of the class action because the rights of the class members, and even named plaintiffs, "may not have been given due regard by the negotiating parties." (Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America (2006) 141 Cal.App.4th 46, 60.)

FAIRNESS OF THE SETTLEMENT AGREEMENT

In an effort to aid the Court in the determination of the fairness of the settlement, *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 244-245 ("Wershba"), discusses factors that the Court should consider when testing the reasonableness of the settlement.

A presumption of fairness exists where: 1) the settlement is reached through arm's length bargaining; 2) investigation and discovery are sufficient to allow counsel and the Court to act intelligently; 3) counsel is experienced in similar litigation; and 4) the percentage of objectors is small. (*Wershba* at 245, citing *Dunk* at 1802.) The test is not the maximum amount plaintiff might have obtained at trial on the complaint but, rather, whether the settlement is reasonable under all of the circumstances. (*Wershba* at 250.)

In making this determination, the Court considers all relevant factors including "the strength of [the] plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 128 ("*Kullar*"), citing *Dunk* at 1801.)

"The fact that a proposed settlement may only amount to a fraction of the potential recovery does not, in and of itself, mean that the proposed settlement is grossly inadequate and should be disapproved." (City of Detroit v. Grinnell Corporation (2d Cir. 1974) 495 F.2d 448, 455; see also Linney v. Cellular Alaska Partnership (9th Cir. 1998) 151 F.3d 1234, 1242 ("[I]t is the very uncertainty of outcome in litigation and avoidance of wasteful and expensive litigation that induce consensual settlements. The proposed settlement is not to be judged against a hypothetical or speculative measure of what might have been achieved by the negotiators."))

TERMS OF SETTLEMENT AGREEMENT

"Class"

means all persons currently or formerly employed by Defendant, either directly or through any subsidiary, staffing agency, or professional employer organization, as non-exempt or hourly-paid employees during the Class Period in the State of California. (§1.5)

"Class Period" means the period from August 23, 2017 through December 18, 2025. (§1.12)

"Aggrieved Employee"

means all persons currently or formerly employed by Defendant, either directly or through any subsidiary, staffing agency, or professional employer organization, as a non-exempt or hourly-paid employee during PAGA Period in the State of California. (§1.4)

"PAGA Period" means the period from February 1, 2020, through December 18, 2025. (§1.32)

Based on a review of its records

as of the mediation date of February 5, 2024, Defendant estimates there were 957 Class Members who collectively worked a total of 105,510 Workweeks, and 584 of Aggrieved Employees who worked a total of 26,906 PAGA Pay Periods. (§4.1)

The Parties stipulate to class certification for settlement purposes only. (§12.1)

The Gross Settlement Amount ("GSA") is \$527,550, non-reversionary. (¶3.1)

· Defendant represents that Class Members worked 105,510 Workweeks as of February 5, 2024. In the event the number of Workweeks worked during the Class Period exceeds 116,061 (i.e., increases by more than 10%), then the Gross Settlement Amount shall be increased proportionally by the Workweeks worked in excess of 116,061. Should the Workweeks worked by Class Members during the Class Period exceed 116,061 (i.e., increase beyond 10%), then the Gross Settlement Amount shall be increased on a pro-rata basis equal to the percentage increase in the number of Workweeks worked by the Class Members above 10% (e.g., if the total number of Workweeks increases by 11 % to 117,116, the Gross Settlement Amount will proportionally increase by 1 %). (¶8.1)

The Net Settlement Amount ("NSA")
of \$247,642.25 is the GSA minus:

Up to \$174,091.50 (33.3%) for attorneys'
fees (¶3.2.2);

o

Fee

Split: 75% to

Bibiyan Law Group, P.C., and 25% to Lawyers for Justice, P.C (Supplemental Declaration of Brandom M. Chang ("Chang Supp. Decl."), ¶23.)

Up to \$30,000 for attorneys' costs (¶3.2.2);

Up to \$22,500 (\$7,500
x 3) for Enhancement Payments to class representatives (¶3.2.1);

Up to \$13,750 for
costs of settlement administration (¶3.2.3); and

Payment of \$39,566.25 (75%
of \$52,755 PAGA penalty) to the LWDA (¶3.2.5).

Defendant agrees it is responsible
for employer payroll taxes, which is not included in the Gross Settlement

Amount. (¶3.1)

Funding of the Settlement:

Defendant shall make payment of the Gross Settlement Amount (as the same may be increased pursuant to Paragraph 8 .1 of this Agreement) and employer taxes to the Administrator pursuant to Internal Revenue Code section 1.468B-1 for deposit in an interest-bearing qualified settlement account ("QSA") with an FDIC insured banking institution, for distribution in accordance with this Agreement and the Court's orders, and subject to the conditions described herein. Defendant shall make payment of the Gross Settlement Amount in three (3) "Installment Payments" as follows: (1) \$175,850.00, plus one-third (1/3) of the amount in excess of \$527,550.00 should the Gross Settlement Amount be increased pursuant to Paragraph 8.1 below, and plus the employer taxes associated with this amount, shall be paid within thirty (30) calendar days of the Effective Date (the "First Installment Payment"); (2) \$175,850.00, plus one-third (1/3) of the amount in excess of \$527,550.00 should the Gross Settlement Amount be increased pursuant to Paragraph 8.1 below, and plus the employer taxes associated with this amount, shall be paid no later than September 22, 2025 (the "Second Installment Payment"); and (3) \$175,850.00, plus one-third (1/3) of the amount in excess of \$527,550.00 should the Gross Settlement Amount be increased pursuant to Paragraph 8.1 below, and plus the employer taxes associated with this amount, shall be paid no later than March 22, 2027 (the "Third Installment Payment"). (¶4.3)

Payments from the GSA: Within 7

days after Defendant funds each of the First Installment Payment, Second Installment Payment, and Third Installment Payment, the Administrator will mail checks for the proportional amounts of the Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payments. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payments shall not precede disbursement of Individual Class Payments and the Individual PAGA Payments. (¶4.4)

No Claim Requirement: Class

Members shall not be required to submit a claim form in order to receive an individual settlement payment. (¶3.1)

Calculation of Individual Settlement Payments: Specific

calculations of Individual Settlement Payments will be made as follows: An Individual Class Payment calculated by (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period and (b) multiplying the result by each Participating Class Member's Workweeks. (§3.2.4)

· Tax Allocation: 20% to wages, 80% to penalties and interest.
(§3.2.4.1)

PAGA Payments: The Administrator will calculate each Individual PAGA Payment by (a) dividing the amount of the Aggrieved Employees' 25% share of PAGA Penalties (\$13,188.75) by the total number of PAGA Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiplying the result by each Aggrieved Employee's PAGA Pay Periods. (§3.2.5)

· Tax Allocation: 100% penalties. (§3.2.5.1)

"Response Deadline" means sixty (60) days after the Administrator mails Class Notice to Class Members, and shall be the last date on which Class Members may: (a) mail Requests for Exclusion from the Class portion of the Settlement, or (b) mail his or her objection to the Class portion of the Settlement. Class Members to whom the Class Notices are resent after having been returned undeliverable to the Administrator shall have an additional 15 days beyond the Response Deadline has expired. (§1.44) The same deadline applies to workweek disputes. (§7.6)

· If the number of valid Requests for Exclusion exceeds 10% of the total of all Class Members, Defendant may elect to withdraw from the Settlement. (§9)

Uncashed Checks: The Administrator will cancel all checks not cashed by the void date (not less than 180 days after the date of mailing). (§4.4.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the cy pres recipient, Legal Aid at Work, for use in Los Angeles County. (§4.4.3)

· Plaintiffs' counsel at Bibiyan Law Group, P.C. and Plaintiffs' counsel at Lawyers for Justice, PC, represents that they have no interest in,

or conflict with, Legal Aid at Work. (Chang Supp. Decl., ¶25; Supplemental Declaration of Ryan Slinger (“Slinger Supp. Decl.”), ¶2.)

· [Parties and Defense Counsel?]

The Parties agree to use Phoenix Class Action Administration Solutions as the Settlement Administrator. (¶1.2)

The proposed Settlement Agreement was submitted to the LWDA on June 30, 2025. (Declaration of Brandom M. Chang (“Chang Decl.”), Exhibit 3.) The proposed Amended Settlement Agreement was submitted to the LWDA on August 5, 2026. (Chang Supp. Decl., ¶25, Exhibit 4.)

All class members who do not opt out will release certain claims, discussed in detail below.

ANALYSIS OF SETTLEMENT AGREEMENT

A. Does a Presumption of Fairness Exist?

1. Was the Settlement reached through arm’s-length bargaining? Yes. On February 5, 2024, Plaintiff Navarro and Defendant participated in an all-day mediation presided over by Nikki Tolt, Esq., where the parties reached a settlement. (Chang Decl. ¶8.)

2. Were investigation and discovery sufficient to allow counsel and the Court to act intelligently? Class Counsel represents that prior to mediation, Plaintiff Navarro obtained, through informal discovery: (a) time and payroll records for 100% of Class Members through mediation; (b) a class list of hire dates, termination dates, and rates of pay for all Class Members; (c) wage and hour policy documents; (d) contact information for 957 Class Members; and (e) all documents pertaining to Plaintiffs available to Defendant. Plaintiff Navarro also obtained Defendant’s IRS Form 990s for the years 2020 and 2021, which were analyzed by retained expert financial consultants to determine Defendant’s ability to fund a class-wide settlement. (Id. at ¶6.)

3. Is counsel experienced in similar litigation? Yes. Class Counsel is experienced in complex litigation, including wage and hour class action cases. (Id. at ¶¶65-68; Declaration of Ryan Slinger (“Slinger Decl.”), ¶¶12-6; Declaration of David D. Bibiyan (“Bibiyan Decl.”), passim.)

4. What percentage of class has objected?
This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2011) ¶ 14:139.18 (“Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.”)

B. Is the settlement fair, adequate and reasonable?

1. Strength of Plaintiffs’ case. “The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement.” (Kullar at 130.)

Class Counsel has provided information, summarized below, regarding the maximum values of the claims asserted:

Violation
Maximum Exposure
Discounted Exposure
Unpaid Regular Wages
\$367,485.00
\$367,485.00
Meal Break Violations
\$1,040,040.00
\$1,040,040.00
Rest Break Violations

\$1,141,010.00

\$1,141,010.00

Wage Statement Violations

\$2,690,600.00

\$1,345,300.00

Waiting Time Penalties

\$2,108,006.00

\$1,054,003.00

PAGA

\$9,475,500.00

\$473,775.00

TOTAL

\$16,822,641.00

\$5,421,613.00

(Chang
Decl. ¶¶ 41-58.)

2. Risk,
expense, complexity and likely duration of further litigation. Further litigation carried the possibility of non-certification and unfavorable rulings on the merits on the above legal issues.

3. Risk of maintaining class
action status through trial. It
would have been Plaintiff's burden to maintain the class action through trial.

4. Amount offered in settlement. GSA of \$527,550 represents approximately 3.14% to 9.73% of Defendant's maximum exposure and discounted exposure on the claims alleged, which, given the uncertain outcomes is within the "ballpark of reasonableness."

Assuming the requested deductions are taken in full, \$247,642.25 will remain for distribution to class members. Assuming full participation, each Class Member will receive approximately \$258.77 after all other deductions are taken from the settlement amount. [$\$247,642.25 / 957 = \258.77]

5. Extent of discovery completed and the stage of the proceedings. As stated above, it appears that Class Counsel has completed sufficient discovery in order to make an informed decision.

6. Experience and views of counsel. As indicated above, Class Counsel is experienced in class actions, including cases involving wage and hour violations.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object or opt-out. This factor becomes relevant during the fairness hearing.

SCOPE OF RELEASE

Release of Claims by Class Members. Effective upon Judgment, Final Approval, and on the date when Defendant fully funds the entire Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiffs, Class Members, and Class Counsel will release claims against all Released Parties as follows: ¶15)

- Release by Participating

Class Members: For the duration of the Class Period, all Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release all claims, rights, demands, damages, liabilities, and causes of action, in law or in equity, arising at any time during the Class Period for the claims asserted in the Action or that could have been asserted in the Action based on the factual allegations and theories made by Plaintiffs in the Operative Complaint. The claims to be released by the Settlement Class Members as to the Released Parties include all claims under state, federal, or local law, arising out of the claims expressly pleaded in the Operative Complaint in the Action and all other claims, such as those under the California Labor Code, Wage Orders, regulations, and/ or other provisions of law, that could have been asserted based on the facts pleaded in the operative complaint in the Action for: (1) failure to pay overtime wages under Labor Code Sec. 510, 1198; (2) failure to pay minimum wages under Labor Code Sec. 1194, et seq.; (3) failure to provide meal periods and/or pay meal period premiums under Labor Code Sec. 226.7, 512; (4) failure to provide rest periods and/or pay rest period premiums under Labor Code Sec. 226.7; (5) failure to timely pay wages upon termination under Labor Code Sec. 203; (6) failure to provide accurate, itemized wage statements under Labor Code Sec. 226; (7) failure to timely pay wages during employment under Labor Code Sec. 204, 210; (8) violation of California's unfair competition law under Business and Professions Code Sec. 17200; (9) failure to reimburse business expenses under Labor Code Sec. 2800, 2802; and (10) failure to keep requisite payroll records under Labor Code Sec. 1174(d). (¶5.2) Except as set forth in Section 5.2 of this Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (¶5.3)

· Release by Aggrieved

Employees: For the duration of the PAGA Period, the LWDA and the State of California, by and through Plaintiffs as agents and proxies of the LWDA, and to the extent permitted by law, the Aggrieved Employees, release the Released Parties from all claims and causes of action for civil penalties under PAGA arising at any time during the PAGA Period for the claims asserted in the Action or that could have been asserted in the Action based on the factual allegations in the Operative Complaint and in Plaintiff Navarro's PAGA Notice dated February 1, 2021 to the LWDA. (¶5.4)

· "Released

Parties" means: Defendant and each of its former and present directors, officers, owners, members, board members, attorneys, insurers, predecessors, successors, assigns, subsidiaries, affiliates and agents (including, without limitation, any investment bankers, accountants, insurers, reinsurers, attorneys and any past, present or future officers, directors and employees). (¶1.43)

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Named Plaintiff will additionally provide a general release and §1542 waiver. (¶5.1)

CONDITIONAL CLASS CERTIFICATION

A. Standards

A detailed analysis of the elements required for class certification is not required, but it is advisable to review each element when a class is being conditionally certified. (Amchem Products, Inc. v. Winsor (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a different standard to determine the propriety of a settlement class as opposed to a litigation class certification. Specifically, a lesser standard of scrutiny is used for settlement cases. (Dunk at 1807, fn. 19.) Because a settlement eliminates the need for a trial, when considering whether to certify a settlement class, the court is not faced with the case management issues present in certification of a litigation class. (Global Minerals & Metals Corp. v. Superior Court (2003) 113 Cal.App.4th 836, 859.) Finally, the Court is under no "ironclad requirement" to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (Wershba at 240.)

B. Analysis

1. Numerosity. There are approximately 957 Class Members. (Chang Decl., ¶62.) Thus, numerosity has been sufficiently established.

2. Ascertainability. "A class is ascertainable, as would support certification under statute governing class actions generally, when it is defined in terms of objective characteristics and common transactional facts that make the ultimate

identification of class members possible when that identification becomes necessary.” (Noel v. Thrifty Payless, Inc. (2019) 7 Cal.5th 955, 961.) Here, the class is defined above. Class members are ascertainable from Defendant’s records. (Chang Decl., ¶61.)

3. Community

of interest. “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As to commonality, Counsel contends that this litigation is brought to resolve common issues that include whether Defendant failed to pay for all hours worked; whether Defendant provided full, timely and un-interrupted meal and rest periods, whether Class Members are entitled to premium pay for incomplete, untimely or interrupted meal or rest periods, among other claims. (Chang Decl., ¶63.)

As to typicality, Counsel contends that Plaintiffs’ claims are typical of those of other Class Members as Plaintiffs: (1) are non-exempt, hourly paid employees like other Class Members; (2) complain of not being paid for all time under Defendant’s control or suffered and/or permitted to work for Defendant; (3) did not receive full premium pay for meal periods that were not compliant with the Labor Code; (4) did not receive premium pay for rest periods that were not provided, among others as set forth above. (Id. at ¶64.)

As to adequacy, Plaintiffs contend that no conflicts, disabling or otherwise, exists between Plaintiffs and Class Members because Plaintiffs alleges to have been damaged by the same alleged conduct of Defendant (i.e., Plaintiffs classified as a non-exempt, hourly-paid employee, not paid premium pay, etc.) and thus have the incentive to fairly represent all Class Members’ claims to achieve the maximum possible recovery. (Id. at ¶69; Decl. of Sasha Marty Navarro, passim; Decl. of Daniel Kays, passim; Decl. of Vermicco Davis, passim.)

4. Adequacy of class counsel. As

indicated above, Class Counsel is experienced in class actions, including cases involving wage and hour violations.

5. Superiority. Given

the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

Since

the elements of class certification have been met, the class may be conditionally certified at this time.

NOTICE TO

CLASS

A. Standard

California Rules of Court, rule

3.769(e) provides: "If the court grants preliminary approval, its order must include the time, date, and place of the final approval hearing; the notice to be given to the class; and any other matters deemed necessary for the proper conduct of a settlement hearing." Additionally, rule 3.769(f) states: "If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement."

B. Form of

Notice

The

proposed notice is attached to the Amended Settlement Agreement as Exhibit A. The information provided in the proposed notice includes: a

summary of the litigation, the nature and terms of the settlement, the proposed deductions from the gross settlement amount, the procedures for participating in, opting out of, or objecting to the settlement, and the time, date, and location of the final approval hearing.

C. Method

of Notice

Prior to the hearing on the

Motion for Preliminary Approval, Defendant will deliver the Class Data to the Administrator in the form of a Microsoft Excel spreadsheet. (¶4.2) Using best efforts to perform as soon as possible, and in no event later than 14 days after the later of receiving the Class Data and the Court granting Preliminary Approval, the Administrator will send to all Class Members identified in the Class Data, via first-class United States Postal Service ("USPS") mail, the Class Notice. Before mailing Class Notices, the Administrator shall update Class Member addresses using the NCOA database. (¶7.4.2)

Not later than 3 business

days after the Administrator's receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (¶7.4.3)

Notice of Final Judgment

will be posted on the administrator's website. (¶7.8.1.)

D. Cost of

Notice

The

cost of settlement administration is estimated at \$13,750 (¶3.2.3). This amount appears reasonable. However, prior to the time of the final

fairness hearing, the settlement administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

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ATTORNEY FEES

AND COSTS

California Rules of Court, rule

3.769(b) states: "Any agreement, express or implied, that has been entered into

with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action.”

Ultimately, the award of attorney fees is made by the Court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) In common fund cases, the Court may utilize the percentage method, cross-checked by the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the contrary, “the court has an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable.” (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether class counsel is entitled to \$26,140.50 (33.3%) in fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees.

Counsel should also be prepared to justify any costs sought (capped at \$30,000) by detailing how such costs were incurred.

PROPOSED SCHEDULE OF SETTLEMENT PROCEEDINGS

The following schedule is proposed by the Court:

Preliminary
Approval Hearing – _____

Deadline for Serving Notices to Class
Members – _____ (____ calendar days from preliminary approval)

Deadline for Requests for Exclusion
and Objections – _____ (60 calendar days from initial mailing)

Deadline

for Class Counsel to File Motion for Final Approval of Settlement and Motion for Attorney Fees and Response to any Objections – _____ (___ court days prior to hearing)

Final

Fairness Hearing and Final Approval – _____